

23VECV02287 23VECV02287

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Case Number: 23VECV02287 Hearing Date: September 22, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

EVAN JEHL, Trustee of
the 17100 Rancho Trust,

Plaintiff,

vs.

RANCHO VILLA, LLC, a California limited
liability company; DAVID ZEMACH, an individual; CW GENERAL CONSTRUCTION,
INC., a Cal. corporation; HUDSON INSURANCE COMPANY, a division of Hudson
Insurance Group, an unknown entity, headquartered in New York City; JR POOL
& SPA SERVICES, INC., a Cal. corporation; HARTFORD INSURANCE COMPANY OF
THE MIDWEST, a subsidiary of The Hartford Financial Services Group, Inc., a
Del. corporation, located in Hartford, Connecticut; J.T. EDEN, a Cal.
corporation doing business under the fictitious name and style of THE EDEN
GROUP, and DOES 1-100, inclusive,

Defendants.

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CASE NO.: 23VECV02287

ORDER

GRANTING IN PART DEFENDANT ODED ZEMACH'S MOTION FOR JUDGMENT ON THE PLEADINGS
TO FOURTH AMENDED COMPLAINT WITH LEAVE TO AMEND

RANCHO VILLA, LLC, a California limited
liability company; DAVID ZEMACH, an individual,

Cross-Complainants,

vs.

CW GENERAL CONSTRUCTION, INC., a
California corporation; JR POOL & SPA SERVICES, INC.; GORDON S. GIBSON,
INC., a California corporation; HENDRIX CONSULTING, LLC, a California limited
liability company; ROES 1 through 50, inclusive,

Cross-Defendants.

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RIEHL CONSTRUCTION CONSULTING, LLC,

Cross-Complainant,

vs.

EVAN JEHLE, Trustee of the 17100 Rancho
Trust; NJJ Entertainment, LLC and MOES 1-20, Inclusive,

Cross-Defendants.

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J.T. Eden, a California corporation
doing business under the fictitious name and style of THE EDEN GROUP,

Cross-Complainant,

vs.

SOES 1-25, inclusive,

Cross-Defendants.

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CW GENERAL CONSTRUCTION, INC., a
California corporation,

Cross-Complainant,

vs.

RANCHO VILLA, LLC, a California limited liability company; DAVID ZEMACH, an individual, and DOES 1-200,

Cross-Defendants.

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YORAM DAVID NAJUM DBA JR POOL AND SPA SERVICES
erroneously sued and served as JR POOL & SPA SERVICES, INC,

Cross-Complainant,

vs.

ROES 1-50, inclusive,

Cross-Defendants.

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I.

BACKGROUND

This case

arises out of the alleged construction defects of a residence located at 17100 Rancho Street, Encino, California ("Property"). (See Fourth Amended Complaint ("4AC"), ¶¶ 1-2.)

Plaintiff Evan Jehle, Trustee of the 17100 Rancho Trust, alleges he purchased the Property from Defendant developer Rancho Villa, LLC ("Rancho Villa"), on October 25, 2019, but that the Property was "replete with latent defects." (See 4AC, ¶¶ 2, 27.) Plaintiff

filed his 4AC against Rancho Villa and those involved in the construction of the Property: Defendant David Zemach ("David Z.") (managing member and owner of Rancho Villa), Defendant CW General Construction, Inc. ("CW") (general contractor responsible for allegedly defective decking), Defendant Yoram David Najum dba JR Pool and Spa Services ("JR Pool") (pool and spa contractor responsible for defective pool construction), Defendants Hudson Insurance Company ("Hudson Insurance") and Hartford Insurance Group ("Hartford Insurance") (CW and JR Pool's insurers, later dismissed), and Defendant J.T. Eden dba The Eden Group ("J.T. Eden") (architectural/engineering firm involved in the construction of the Property), IO Lifetime Builders, Inc., Oded Zemach ("Oded Z."), Urbino Construction Services, LLC ("Urbino"), and Moshe Zemach ("Moshe Z.") (collectively, "Defendants"). (See generally 4AC.)

Several

cross-complaints have been filed in this action. Rancho Villa and Zemach filed a Cross-Complaint against CW, Cross-Defendant Gordon S. Gibson, Inc. ("Gibson"), Cross-Defendant Jabs Pools and Spas, LLC ("Jabs Pools") and Riehl Construction Consulting, LLC ("Riehl").

For good

measure, Riehl filed a Cross-Complaint of its own against Plaintiff and Cross-Defendant NJJ Entertainment, LLC ("NJJ").

Oded Z. now moves for

judgment on the pleadings on the 4AC.

II.

PROCEDURAL

HISTORY

On May 24,

2023, Plaintiff filed his Complaint, alleging (1) Construction Defects – Violation of Civil Code § 896, et

seq. (The Right to Repair Act) against Defendants Rancho Villa, David Z., CW, Hudson Insurance, Hartford Insurance, and JR Pool; (2) Fraudulent Transfer (Civil Code § 3439.04) against Rancho Villa; and (3) Rescission (Civil Code § 1688, et seq.) against Rancho Villa.[1]

On June 30, 2023, Plaintiff dismissed Hartford Insurance and Hudson Insurance.

On July 31, 2023, Plaintiff filed his FAC, alleging (1) Construction Defects – Violation of Civil Code § 896, et seq. (The Right to Repair Act) against all Defendants; (2) Fraudulent Transfer (Civil Code § 3439.04) against Rancho Villa; and (3) Rescission (Civil Code § 1688, et seq.) against Rancho Villa.

On August 30, 2023, Plaintiff filed a Certificate of Merit pursuant to Code of Civil Procedure § 411.35(b)(1) as to J.T. Eden.

On September 28, 2023, J.T. Eden filed its Cross-Complaint against SOES 1 through 25, inclusive, alleging (1) Equitable/Implied Indemnity; (2) Apportionment and Contribution; and (3) Declaratory Relief.

On September 29, 2023, Rancho Villa and David Z. filed their Cross-Complaint against CW, JR Pool, Gibson, and Cross-Defendant Hendrix Consulting, LLC, alleging (1) Equitable Indemnity; (2) Contribution; and (3) Declaratory Relief (“Rancho Villa Cross-Complaint”).

On November 3, 2023, CW filed its Answer to Rancho Villa and David Z.’s Cross-Complaint.

On November 3, 2023, CW filed its Cross-Complaint against Rancho Villa and David Z., alleging (1) Equitable/Implied Indemnity; (2) Apportionment and Contribution; and (3) Declaratory Relief.

On November

7, 2023, Rancho Villa and David Z. dismissed their Cross-Complaint only as to JR Pool.

On November

7, 2023, Rancho Villa and David Z. amended their Cross-Complaint, adding Jabs Pools and Riehl.

On November

7, 2023, Rancho Villa and David Z. filed their Answer to CW's Cross-Complaint.

On December

20, 2023, JR Pool filed its Cross-Complaint against ROES 1-50, inclusive, alleging (1) Equitable Indemnity; (2) Partial Indemnity; (3) Contribution; and (4) Declaratory Relief.

On January 9,

2024, Gibson filed its Answer to Rancho Villa and David Z.'s Cross-Complaint.

On January

12, 2024, Jabs Pools filed its Answer to Rancho Villa and David Z.'s Cross-Complaint.

On January

16, 2024, Riehl filed its Answer to Rancho Villa and David Z.'s Cross-Complaint.

On January

16, 2024, Riehl filed its Cross-Complaint against Plaintiff and NJJ, alleging (1) Equitable Indemnity, Apportionment, and Contribution; (2) Declaratory Relief; and (3) Breach of Written Contract-Express Indemnity.

On February

16, 2024, Rancho Villa and David Z.'s dismissed their Cross-Complaint only as to Defendant Hendrix Consulting, LLC.

On May 8,

2024, Plaintiff filed his Answer to Riehl's Cross-Complaint.

On August 6,

2024, J.T. Eden amended its Cross-Complaint, adding Cross-Defendant Fast Lane Concrete Pumping.

On September

13, 2024, this Court overruled NJJ's Demurrer to Riehl's Cross-Complaint.

On September

17, 2024, NJJ filed its Answer to Riehl's Cross-Complaint.

On October

21, 2024, Plaintiff filed a Second Amended Complaint ("SAC").

On December

27, 2024, JR Pool filed an Answer to Plaintiff's SAC.

On February

14, 2025, Plaintiff filed a Third Amended Complaint ("TAC") alleging: (1) Construction Defects - Violation of Civil Code § 896, et seq. (The Right to Repair Act); (2) Fraudulent Transfer (Civil Code § 3439.04); (3) Rescission (California Civil Code § 1688, et seq.); (4) Fraudulent Concealment (California Civil Code § 1710(3); and (5) Negligence Against Defendants Hendrix Consulting, LLC And Does 56-60.

On March 14,

2025, J.T. Eden filed an Answer to Plaintiff's TAC.

On April 1,

2025, CW filed an Answer to Plaintiff's TAC.

On April 23,

2025, Hendrix Consulting, LLC filed an Answer to Plaintiff's TAC.

On August 4,

2025, the Court dismissed Cross-Defendant Jabs Pools and Spas, LLC, from Rancho Villa, LLC and David Z.'s Cross-Complaint.

On August 15,

2025, the Court granted Plaintiff leave to file his 4AC.

On August 19,

2025, Plaintiff filed his 4AC alleging: (1) Construction Defects - Violation of Civil Code § 896, et seq. (The Right to Repair Act); (2) Fraudulent Transfer (Civil Code § 3439.04); (3) Rescission (California Civil Code § 1688, et seq.); (4)

Fraudulent Concealment (California Civil Code § 1710(3); and (5) Negligence Against Defendants Hendrix Consulting, LLC and DOES 56-60. Plaintiff added Oded Z., IO Lifetime Builders, Inc., Moshe Z. and Urbino Construction Services, LLC as Defendants.

On December
16, 2025, Oded Z. filed an Answer.

On May 28,
2026, the Court granted J.T. Eden's Application for Determination of Good Faith Settlement.

On July 27,
2026, Plaintiff dismissed J.T. Eden, a California corporation doing business under the fictitious name and style of The Eden Group.

On August 10,
2026, Oded Z. filed the instant Motion.

On August 26,
2026, Plaintiff filed an Opposition.

On September
1, 2026, Oded Z. filed a Reply.

III.

LEGAL STANDARD

A defendant
may move for judgment on the pleadings when the “complaint does not state facts sufficient to constitute a cause of action against the defendant.” (Code Civ. Proc. § 438(b)(1) and (c)(1)(B)(ii).) The
standard for ruling on a motion for judgment on the pleadings is essentially
the same as that applicable to a general demurrer: that under the state of the
pleadings, together with matters that may be judicially noticed, it appears
that a party is entitled to judgment as a matter of law. (See *Schabarum*
v. California Legislature (1998) 60 Cal.App.4th 1205, 1216.) The court
“must accept as true all material facts properly pleaded, but does not consider
conclusions of law or fact, opinions, speculation, or allegations contrary
to law or facts that are judicially noticed.” (*Stevenson Real Estate*

Services, Inc. v. CB Richard Ellis Real Estate Services, Inc. (2006) 138 Cal.App.4th 1215, 1219-1220, citing Shea Homes Limited Partnership v. County of Alameda (2003) 110 Cal.App.4th 1246, 1254.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court a pleading can be amended successfully. (See id.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

IV.

MEET AND CONFER

Before filing

a motion for judgment on the pleadings pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference. (See Code Civ. Proc. § 439(a).)

Oded Z.’s

counsel attests he met and conferred by email and was unable to resolve his dispute. (See Declaration of Timothy R. Hanigan filed August 10, 2026, ¶ 3.) Plaintiff argues Moshe Z. failed to comply with his meet and confer obligation. (See Opp. at 3:4-5.)

The Court

finds an exchange of emails is insufficient to satisfy the obligation to meet and confer in person, by telephone, or by video conference. Parties are expected to meet and confer in good faith prior to seeking judicial intervention. The Court will consider the merits of the instant Motion but will continue future hearings – or even deny the relief sought without reaching the merits – if the parties fail to comply with their obligations again.

V.

ANALYSIS

Oded Z. moves

for judgment on the pleadings on the 4AC’s five causes of action. As to the first claim, Oded Z. argues the 4AC lacks allegations he was involved in the

construction improvements or responsible for any resulting defect. (See Mot. at 3:5-7.) Oded Z. demurs to the second through fifth claims on grounds they are not asserted against him. (See id., at 3:17-20.)

In opposition, Plaintiff contends the first cause of action is sufficiently alleged against Oded Z. as the 4AC pleads he is the alter ego of IO Lifetime Builders, Inc. (“Lifetime”) (See Opp. at 3:1-3.) Plaintiff argues paragraphs 51, 53, and 55 allege Defendants breached their duty to Plaintiff by improperly constructing improvements to the Property. (See Opp. at 3:4-17.)

In reply, Oded Z. argues there are no factual allegations showing he or Lifetime were involved in the construction of the Property or owed Plaintiff a duty in connection therewith. (See Reply at 3:6-9.) Oded Z. argues a general allegation that all Defendants owed a general duty of care to Plaintiff is fatally defective as to him. (See id. at 3:22-23.)

As an initial matter, the Court denies the Motion as to the second through fifth causes of action because they are not asserted against him to begin with. The Court next turns to the first cause of action as to Oded Z., which the Court finds is insufficiently alleged against Oded Z.

A claim under the Right to Repair Act is the exclusive way to recover property damage resulting from construction defects. (See Civ. Code §§ 895-945.5; see *McMillin Albany LLC v. Superior Court* (2018) 4 Cal.5th 241, 252-53.) “[T]o make a claim for violation of the standards set forth in Chapter 2 (commencing with Section 896), a homeowner need only demonstrate... the home does not meet the applicable standard....” (Civ. Code § 942.) Civil Code § 896 provides “a builder...a general contractor, subcontractor, material supplier, individual product manufacturer, or design professional, shall...be liable...” under the Act. (Civ. Code § 896.)

The 4AC alleges Oded Z. was sole managing member and alter ego of Lifetime. (See 4AC, ¶¶ 9, 12-13.) Plaintiff alleges Lifetime's assets “have been commingled with those of Defendants David Zemach, Rancho Villa LLC, Urbino Construction Services, LLC and Moshe Zemach.” (See id., ¶ 12.) The 4AC alleges “Plaintiff’s

counsel sent the Developer [Rancho Villa LLC] a formal demand for repairs in accordance with...the Right to Repair Act.” (Id., ¶ 4, 42-43.) Plaintiff alleges Developer sold the property. (See id., ¶ 54.) These allegations do not allege that either Oded Z. or Lifetime held any of the roles—builder, developer, general contractor, contractor, or original seller of the subject property—that could be liable under the Act. (See Civ. Code §§ 896, 911(a).)

Instead, the 4AC appears to rely on its alter ego allegation to hold Oded Z. liable under the first cause of action, as the 4AC alleges “Defendants owed a duty to Plaintiff either directly or through Defendant Rancho Villa LLC to properly develop and construct the improvements on the Property...” (4AC, ¶ 51.) “Generally, alter ego liability is reserved for the parent-subsidary relationship.” (Las Palmas Associates v. Las Palmas Center Associates (1991) 235 Cal.App.3d 1220, 1249.) “However, under the single-enterprise rule, liability can be found between sister companies.” (Id.) “The theory has been described as follows: “In effect what happens is that the court, for sufficient reason, has determined that though there are two or more personalities, there is but one enterprise; and that this enterprise has been so handled that it should respond, as a whole, for the debts of certain component elements of it.” (Id. at 1249-50 (quoting 2 Marsh’s Cal. Corp. Law (3d ed. 1990) § 16.23, p. 1416).)

The elements under the alter ego doctrine and single enterprise doctrine are the same. (See Las Palmas, 235 Cal.App.3d at 1249-51.) “Two conditions are generally required for application of the doctrine to two related corporations: (1) such a unity of interest and ownership that the separate corporate personalities are merged, so that one corporation is a mere adjunct of another or the two companies form a single enterprise; and (2) an inequitable result if the acts in question are treated as those of one corporation alone” (Tran v. Farmers Group, Inc. (2002) 104 Cal.App.4th 1202, 1219.) Factors to consider in applying the doctrine include the commingling of funds and other assets, the holding out by one entity that it is liable for the debts of the other, identical equitable ownership in the two entities, inadequate capitalization, and disregard of corporate formalities. (See Sonora Diamond Corp. v. Superior Court (2000) 83 Cal.App.4th 523, 538-39.)

Here, the

4AC's alter ego allegations are only sufficient as to Oded Z. and Lifetime. However, this is insufficient to show Oded Z. could be liable for Rancho Villa's conduct.

The conclusory allegation that Lifetime's assets were commingled with Rancho Villa's are insufficient to show that Lifetime and Rancho Villa exhibited such a unity of interest and are one enterprise such that Oded Z. could be held liable under the alter ego doctrine by virtue of being the alter ego of Lifetime, which would essentially be the same enterprise as Rancho Villa. Thus, the claim fails as to Oded Z.

The Court GRANTS

IN PART Oded Z.'s Motion for Judgment on the Pleadings to the 4AC to the First Cause of Action for violation of the Right to Repair Act WITH LEAVE TO AMEND.

The Court DENIES

the Motion as to the Second through Fifth Causes of Action.

VI.

CONCLUSION

Based on the

foregoing, the Court GRANTS IN PART Oded Z.'s Motion for Judgment on the Pleadings to the 4AC to the First Cause of Action for violation of the Right to Repair Act WITH LEAVE TO AMEND.

The Court

OVERRULES the Motion as to the Second through Fifth Causes of Action.

Plaintiff is

ordered to file an amended pleading on or before October 2, 2026.

IT

IS SO ORDERED.

DATED: September 22, 2026

Hon. Michael R. Amerian

Judge,

Superior Court

[1] All statutory references

are to California codes unless stated otherwise.